



CHAPTER lxxx.

An Act to empower the urban district council of Colwyn Bay to run omnibuses to confer further powers on the Council with regard to the distribution of water the supply of electricity the purchase of lands for various purposes and the health local government and improvement of the district to provide for the consolidation of the parishes in the district and the consolidation of the rates of the district and for other purposes. [4th August 1926.]

A.D. 1926.

WHEREAS the urban district of Colwyn Bay in the county of Denbigh is under the local government of the urban district council of Colwyn Bay (in this Act called "the Council") :

And whereas the Council distribute water within their district and it is expedient to confer upon the Council the powers with regard to the distribution of water contained in this Act :

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the district and to enlarge the powers of the Council with regard thereto as provided in this Act :

And whereas it is expedient to confer upon the Council the further powers with regard to the supply of electricity contained in this Act :

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And whereas it is expedient to provide for the consolidation of the parishes in the district and for the consolidation of the rates levied in the district :

And whereas it is expedient to provide for the formation of a consolidated loans fund by the Council and to make further provision with regard to the finances of the Council and the application of revenue derived from their several undertakings :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the purchase of lands - - - - -	1,000
For the provision of omnibuses authorised by this Act - - - - -	8,200
For the erection of buildings for the purposes of omnibuses - - - - -	3,000

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Colwyn Bay Urban District Council Act 1926.

Division of Act into Parts.

2. This Act is divided into Parts as follows (that is to say) :—

Part I.—Preliminary.
 Part II.—Omnibuses.

- Part III.—Water. A.D. 1926.
- Part IV.—Baths public buildings recreation grounds &c.
- Part V.—Streets buildings sewers and drains.
- Part VI.—Infectious disease and sanitary provisions.
- Part VII.—Police and hackney carriages.
- Part VIII.—Lands.
- Part IX.—Electricity.
- Part X.—Consolidation of parishes.
- Part XI.—Rating.
- Part XII.—Financial.
- Part XIII.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the taking of lands otherwise than by agreement :

(2) The Waterworks Clauses Acts 1847 and 1863 except—

(a) the words “ with the consent in writing “ of the owner or reputed owner of any such “ house or of the agent of such owner ” in section 44 of the Waterworks Clauses Act 1847 ;

(b) sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts or referred to therein have the same respective meanings unless there be something in the subject or

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- “ The district ” means the urban district of Colwyn Bay ;
- “ The Council ” means the urban district council of the district ;
- “ The clerk ” “ the medical officer ” “ the surveyor ” and “ the sanitary inspector ” mean respectively the clerk the medical officer of health the surveyor and any sanitary inspector of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices ;
- “ The railway company ” means the London Midland and Scottish Railway Company ;
- “ Infectious disease ” means (except where otherwise stated) any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the district ;
- “ Child ” means a person under the age of sixteen years ;
- “ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not ;
- “ Food ” has the meaning assigned to it by section 26 (Definition of “ food ”) of the Sale of Food and Drugs Act 1899 ;
- “ Daily penalty ” means a penalty for each day on which an offence is continued by a person after conviction therefor ;
- “ The district fund ” and “ the general district rate ” mean respectively the district fund and the general district rate of the district ;
- “ The parish ” means the consolidated parish of Llandrillo-yn-Rhos formed under the powers of this Act ;
- “ The overseers ” means the overseers of the poor of the parish ;
- “ The poor rate ” means the poor rate for the parish ;
- “ The Act of 1925 ” means the Rating and Valuation Act 1925 ;

“ The date of the first new valuation ” means the date on which the first new valuation made under Part II. of the Act of 1925 comes into operation ; A.D. 1926.
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“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council ;

“ Revenues of the Council ” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council ;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“ The Order of 1896 ” means the Colwyn Bay and Colwyn Electric Lighting Order 1896 ;

“ The Act of 1902 ” means the Colwyn Bay and Colwyn Urban District Council Act 1902 ;

“ Telegraphic line ” has the same meaning as in the Telegraph Act 1878.

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PART II.

OMNIBUSES.

Power to
provide and
run omni-
buses.

5.—(1) Subject to the provisions of this Act the Council may provide and maintain (but shall not manufacture) and may run omnibuses within the district (a) along the following route :—

Route 1 Along the promenade from Rhos Pier to Beach Road ;

and (b) with the consent of the Minister of Transport along the following routes :—

Route 2 From the junction of the promenade with Llanerch Road along that road to and along Brompton Avenue to and along Conway Road to and along King's Road to its junction with the Old Highway ;

Route 3 Along Llanrwst Road from its junction with Penybryn Road to Bryn-y-maen ;

Route 4 From the junction of Llanrwst Road and Penybryn Road along Penybryn Road to and along King's Drive to its junction with the Old Highway :

Provided that such consent may in the discretion of the said Minister be given to the running of omnibuses along the whole of the said Routes 2 3 and 4 or any part or parts thereof.

(2) No omnibus which is run by the Council on Route 1 or any part thereof shall be run along Routes 2 3 and 4 or any part thereof and no omnibus which is run by the Council on Routes 2 3 and 4 or any part thereof shall be run along any part of Route 1.

(3) The Council shall give notice of any application by them for the consent of the Minister of Transport to the running of omnibuses on any part of Routes 2 3 or 4 by advertisement in a newspaper circulating in the district and otherwise to such persons and in such manner as the said Minister may direct.

(4) Any omnibus run on Routes 2 3 and 4 shall be of such form construction weight and dimensions as the said Minister may approve and no omnibus shall be run by the Council on any of those routes which does not comply with the requirements of the said Minister.

(5) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(6) The Council shall perform in respect of the omnibuses provided under this section such services with regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(7) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Council as if they were carriages used on tramways.

(8) The Council may make byelaws for regulating the travelling in or upon their omnibuses and for the prevention of nuisances in or upon the same or in or against any premises held by the Council in connection therewith.

6.—(1) Subject to the provisions of this section the Council may demand and take for passengers and parcels carried on the omnibuses of the Council fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport.

Fares and
charges &c.

Any application for a revision of such maximum fares or charges may be made by the Council or by twenty ratepayers in the district.

Before approving any maximum fares or charges or any revision thereof under this section the Minister of Transport may direct an inquiry to be held.

Where the Minister causes any such inquiry as aforesaid to be held all expenses incurred by the Minister in relation to that inquiry shall be paid as the Minister may by order direct either by the Council or by any of the parties on whose representation the inquiry is held or partly by the Council and partly by any of such parties and the Minister may certify the amount of the expenses so incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

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(2) Every passenger travelling upon the omnibuses of the Council may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

(3) The Council may if they think fit convey on the omnibuses small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger but they shall not carry any other goods or animals.

For protec-
tion of
railway
company.

7. Nothing in this Act shall impose any obligation upon or enlarge any obligation of the railway company to strengthen adapt alter or reconstruct any bridge or road maintainable by them respectively.

Accounts to
be furnished
to Minister
of Trans-
port.

8. The Council shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their omnibus undertaking.

Through
omnibuses.

9. Subject to the provisions of this Act the Council may run through omnibuses along any route on which the Council are for the time being authorised to run omnibuses and such omnibuses shall be distinguished from other omnibuses in such manner as may be directed by the Council and they may demand and take for every passenger by such omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such omnibus.

Power to
reserve
omnibuses
for special
purposes.

10.—(1) Notwithstanding anything contained in this or any other Act to the contrary save as provided by subsection (2) of the section of this Act of which the marginal note is "Power to provide and run omnibuses" the Council may on any occasion run and reserve omnibuses on any route on which the Council are for the time being authorised to run omnibuses for any special purpose which the Council may consider necessary or desirable provided that such special omnibuses shall be distinguished from other omnibuses in such manner as

the Council may direct and that during the running of such special omnibuses the Council shall maintain a reasonably sufficient ordinary service of omnibuses as the case may be. A.D. 1926.
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(2) The Council may make byelaws and regulations for prohibiting the use of any such omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this or any other Act of the Council as to fares rates or charges for passengers shall not extend to any omnibuses run for such special services as aforesaid and in respect thereof the Council may demand and take such fares rates or charges as they shall think fit.

11. The Council may erect and maintain within the district sheds shelters or waiting-rooms and gangways for the accommodation of passengers on any omnibus route of the Council and may use for that purpose portions of the public streets or roads due regard being given to the convenience of the general traffic along any such street or road. Shelters or waiting-rooms.

12. The Council may provide cloak-rooms at any depôt or building used by them in connection with their omnibus undertaking and at any suitable places on any omnibus route of the Council and the Council may make charges for the use of such cloak-rooms and for the deposit of articles and things therein. Cloak-rooms &c.

13. The following provisions for the protection and benefit of the railway company shall apply and have effect except so far as may be otherwise agreed in writing between the Council and the company :— For protection of railway company in respect of the two preceding sections.

Notwithstanding anything contained in this Act no shed shelter waiting-room gangway cloak-room or room shall be erected maintained or provided so as to cause interference with or to render less convenient the access to or exit from any station depôt or property belonging to the railway company nor shall any such shed shelter waiting-room gangway or cloak-room be erected maintained or provided on any bridge carrying any street or road over the railways of the railway company.

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Lost property.

14. Any property found in any omnibus of the Council or in any shelter or waiting-room in connection with their omnibus undertaking shall forthwith be handed to the conductor of the omnibus or be taken to a place to be appointed for the purpose by the Council and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue of the omnibus undertaking.

Attachment of signs indicating stopping places to lamp-posts &c.

15.—(1) The Council may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of the Council's omnibuses signs or directions indicating the position of stopping places for omnibuses and boards for exhibiting time tables and notices. Provided that in cases where the Council are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign direction or board and shall make compensation to the said owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Council shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Council shall not attach any such sign direction or board to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Council shall not attach any such sign or direction to any lamp-post pole standard or any similar erection belonging to the railway company without the consent of such company in writing.

(5) The Council shall not attach any such sign direction or board to any post pole standard or other similar erection belonging to the Llandudno and Colwyn

Bay Electric Railway Limited without their consent in A.D. 1926.
writing.

16. The fares rates and charges authorised by this Act or by the provisions incorporated therewith shall be paid to such persons and at such places upon or near to the Council's omnibuses and in such manner and under such regulations as the Council may by notice to be annexed to the lists of fares rates and charges appoint.

Payment of
fares rates
and charges.

17. Any byelaws and regulations made by the Council under the provisions contained in this Part of this Act shall be subject and according to the provisions of section 46 (Byelaws by local authority Promoters may make certain regulations) and section 47 (Penalties may be imposed by byelaws) of the Tramways Act 1870 and those provisions shall apply accordingly.

As to bye-
laws &c.
under this
Part of this
Act.

PART III.

WATER.

18. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall with the necessary modifications apply within the district to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Council may and which they are hereby authorised to erect or lay down within the district for the purposes of supplying water :

Application
of Water-
works
Clauses Act
1847 to dis-
charge pipes
and tele-
phones.

Provided that the Council shall not lay down any such discharge pipes telephone or telegraph posts wires conductors or apparatus in through across or under any road bridge or approach of the railway company except with the consent in writing of such company which consent shall not be unreasonably withheld and under the superintendence if given and to the reasonable satisfaction of the principal engineer of such company and if any difference arises as to whether such consent is unreasonably withheld or whether the requirements of the said principal engineer are reasonable or otherwise such difference shall be referred to an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

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For protec-
tion of Post-
master-
General.

19. Any telephone or telegraph posts wires conductors or apparatus erected or laid down by the Council under the authority of this Act shall not be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Meters in
streets to
measure
water or
detect
waste.

20.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Council may for the purposes of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus.

(2) Provided that the Council shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that the Council shall not without the previous consent of a railway company exercise the powers of this section in respect to any street road land footway court or passage which is the property of or maintained by such railway company but such consent shall not be unreasonably withheld.

Pressure.

21. The water to be supplied by the Council need not be constantly laid on under pressure greater than can be supplied by gravitation from a point three hundred feet above ordnance datum.

Power to
levy water
rate.

22. The Council may instead of charging the expenses of their water undertaking on the general district rate levy upon premises supplied with water otherwise than by meter a separate water rate in respect of the expenses incurred by them in connection with their water undertaking but all moneys received by the Council on account of the revenue of their water undertaking shall be carried to and form part of the district fund and all payments and expenses made and

incurred in respect of that undertaking shall be paid out of that fund. A.D. 1926.

23. Notwithstanding anything contained in section 70 (Rates to be paid quarterly in advance) of the Waterworks Clauses Act 1847 the Council may by resolution declare that their water rates and charges shall be payable at such date or dates as the Council may from time to time appoint: Dates for payment of water rates &c.

Provided that no person shall be compellable to pay water rates or charges so demanded for any longer period in advance than three months.

24. Where any premises supplied with water are let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner: Rates payable by owners of small houses.

Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

25. When water of the Council supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Council may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum (and where more motor cars than one are ordinarily kept a further sum not exceeding ten shillings per annum for each motor car beyond the first as the Council may prescribe) and any sum charged under the provisions of this section shall be paid quarterly in advance and be recoverable in the same manner as water rates. Supply of water by hose-pipe to stables &c.

26.—(1) The Council shall not be bound to supply with water otherwise than by measure (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or Supply of water to houses partly used for trade &c.

A.D. 1926. (b) any workhouse public institution hospital asylum (whether public or private) sanatorium club hotel public-house or inn or (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein or (d) any school not maintained by the local education authority.

(2) Where a supply of water to a farmhouse is used for farming purposes the Council may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the gross estimated rental thereof.

(3) The minimum quarterly charge for a supply of water by measure to any of the premises in this section mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same gross estimated rental.

Supply by
meter.

27. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates :

Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
supply by
meter.

28. The price to be charged by the Council for a supply of water by meter shall not exceed—

(a) for water supplied to any premises of either of the classes mentioned in (c) and (d) in subsection (1) of the section of this Act of which the marginal note is "Supply of water to houses partly used for trade &c." one shilling and threepence per one thousand gallons; and

(b) for water supplied by meter for any other purposes two shillings per one thousand gallons.

Period of
error in
defective
meters.

29.—(1) In the event of any meter used by a consumer of water being proved to register erroneously such erroneous registration shall be deemed to have

first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. A.D. 1926.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as charges for water supplied by meter are recoverable by the Council.

30. The Council may levy and recover such charges as they think fit for taking the reading of any water meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than those of the periodical readings Provided that such charges shall not exceed the sum of one shilling for each reading. Charges for special readings of meters.

31.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans water-closets baths cisterns and other apparatus (in this Act referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) Such byelaws shall not apply to any water fittings used on the premises of any railway company other than premises to which the Council are bound under the Waterworks Clauses Act 1847 to afford a constant supply.

(4) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their

A.D. 1926. — duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council from the person on whose credit the water is supplied as the water rates in respect of the premises are recoverable.

Power to
person
liable to
maintain
pipes &c.
to open
ground.

32.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have a like power to open the ground to that conferred upon him by and be subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe or other pipe or apparatus and for that purpose to open or break up any street in the district execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Power to
Council to
repair com-
munication
pipes.

33.—(1) If by reason of any injury to or defect in any communication pipe which the Council are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Council by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

(2) Provided that except in case of emergency the Council shall not under the powers of this section enter into any house or private premises unless they shall have given notice to the occupier of such house or

premises and in any case where the communication pipe is repairable by the owner thereof to such owner not less than twenty-four hours' previous notice of their intention so to enter. A.D. 1926.
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34. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Council not bound to supply several houses by one pipe.

35. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Council or other officer duly authorised in that behalf by the Council. Maintenance of common pipe.

36. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell meters.

37. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under the superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for any such offence be liable to a penalty not exceeding forty shillings. Notice to Council of connecting or disconnecting meters.

38. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council. Notice to discontinue supply of water.

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Injuring
meters &c.

39.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
supply
water
fittings.

40.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may

provide all materials and execute all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

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(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

(3) Subject to the proviso to subsection (2) of this section all fittings let by the Council on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any premises at all times continue to be the property of and removable by the Council. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) Provided as follows—

- (a) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);
- (b) When a demand note delivered by the Council to a consumer includes a sum charged by the Council in respect of providing such fittings or the repairing fixing or removal thereof such sum shall be clearly stated in such demand note;
- (c) The total sums expended and received by the Council in connection with the purposes in

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this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

Penalty for closing valves and apparatus.

41. Every person who shall wilfully (without the consent of the Council) or negligently close or shut off any valve cock or other work or apparatus belonging to the Council whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Council) be liable on conviction to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for interfering with valves &c.

42. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of the supply of water by the Council who shall without the authority of the Council turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Council and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

PART IV.

BATHS PUBLIC BUILDINGS RECREATION GROUNDS &c.

Power to use &c. lands for this Part of Act.

43. For the purposes of this Part of this Act the Council may use lands of which for the time being they may be the owners and may purchase or take on lease or otherwise acquire lands by agreement for the said purposes but nothing in this section shall authorise the Council to create or permit the creation or continuance of any nuisance on any such lands.

As to baths and bathing pools.

44. Subject to the provisions of this Act :—

- (1) The Council may by agreement purchase and acquire or may construct and may maintain alter extend enlarge improve repair furnish

and equip or discontinue sell and dispose of open or covered sea-water or fresh-water swimming and other baths and bathing pools with all necessary conveniences and appliances : A.D. 1926.
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- (2) The Council may make and enforce byelaws for the management use and regulation of the said baths and bathing pools and for regulating the conduct of the persons resorting thereto in like manner as byelaws under the Baths and Washhouses Acts 1846 to 1899 as amended by section 86 of the Public Health Act 1925 may be made and enforced and the provisions of section 32 of the Baths and Washhouses Act 1846 so far as the same are applicable and are not inconsistent with the provisions of this Act shall extend and apply to such baths and bathing pools and the Council may demand and take for the use of such baths and bathing pools or for the admission of persons thereto such reasonable charges as they may think fit to make :
- (3) The Council may also lay down and provide such sea-water intake pipes apparatus and fittings as may be incidental to or necessary for supplying sea-water to any baths belonging to them and for the purpose of laying and repairing such pipes apparatus or fittings may break up streets repairable by them and alter the position of any culverts pipes and wires under any street Provided that the Council shall not alter the position of or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 :
- (4) The Council may let on lease to any company or person for such term and on such conditions as they may think fit any baths or bathing pools provided by them as aforesaid or the powers and rights with regard to the provision maintenance and carrying on of baths or bathing pools contained in this section.

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Power to
provide and
let public
hall and
other build-
ings.

45. Subject to the provisions of this Act:—

(1) The Council may erect acquire and construct and hold furnish equip maintain insure and carry on a concert hall public hall assembly rooms rooms for all social purposes pavilions conservatories winter gardens bandstands and other buildings with all necessary and suitable offices committee rooms entertainment rooms reading rooms ante rooms shelters refreshment rooms kitchens cloak-rooms lavatories gardens pleasure grounds promenades model yacht ponds outbuildings conveniences and appurtenances and may for any such purposes alter adapt extend or otherwise deal with existing buildings for the time being belonging to the Council and may provide erect and maintain offices as part of any such building or buildings:

(2) The Council may grant or let with or without charge the use of the whole or any part of any buildings acquired or constructed by them under the powers of this section for the purpose of any public or other meetings or any musical or other entertainments or for other purposes approved by the Council on such terms and conditions as they may think fit.

Use of swim-
ming baths
&c. for
swimming
contests &c.

46. The Council may close to the public and may reserve the exclusive use of any swimming bath open bathing place or bathing pool belonging to them and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises or regattas or for other similar purposes and may demand and take or authorise to be demanded and taken at the door or entrance of such swimming bath open bathing place or bathing pool such sums for the exclusive use of such bath place or pool or for admission of persons thereto as they may think fit.

Power to
charge for
admission.

47. The Council may make such reasonable charges as they may think fit for admission to and for the use of any public building belonging to them or for the use of model yacht ponds or lands used for the purposes mentioned in this Part of this Act and they may also

make such charge for the use of chairs and for admission to the public halls concert halls pavilions conservatories winter gardens assembly rooms and conveniences in connection therewith authorised by this Act as the Council may deem fit. A.D. 1926.

48. Subject to the provisions of this Act :—

Provision of
concerts en-
ertain-
ments &c.

- (1) The Council may provide or arrange for the provision or carrying on of suitable concerts entertainments exhibitions swimming contests athletic meetings regattas and amusements in any concert hall public hall assembly room pavilion conservatory winter garden bandstand or other building provided by them under the powers of this Act or in any baths bathing pools or model yacht ponds belonging to them or in any parks or recreation grounds for the time being vested in them or under their control or upon any land belonging or leased to them and may make such charges as they may think fit for admission thereto and the Council may let any such buildings baths bathing pools model yacht ponds or rooms belonging to them or any parks or recreation grounds for the purpose of such concerts entertainments exhibitions swimming contests athletic meetings regattas or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Council may think fit :

Provided that nothing in this subsection contained shall enable the Council to use any concert hall public hall assembly room pavilion conservatory winter garden or other building provided by them under the powers of this Act for the purposes of a cinema theatre :

- (2) The Council may in any baths bathing pools model yacht ponds parks or recreation grounds provided by them under the powers of this Act enclose an area for the purpose of any such concerts or other entertainments exhibitions swimming contests athletic meetings regattas and amusements as aforesaid :

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- (3) The Council may provide and sell or authorise any person or persons to provide and sell programmes of any concerts entertainments or performances given in pursuance of this section :
- (4) The Council may make byelaws for securing good and orderly conduct during any concerts entertainments exhibitions or amusements provided or carried on in pursuance of the provisions of this section :
- (5) The Council may pay or contribute towards the cost of providing and maintaining at public places in the district and on passenger boats light railway cars and omnibuses plying between the district and other places and in newspapers published in the counties of Denbigh and Carnarvon advertisements of any concerts entertainments swimming contests athletic meetings exhibitions regattas or amusements given or provided in pursuance of this section :
- (6) Any expenses incurred by the Council under the provisions of this section may be paid by the Council out of the district fund Provided always that the net amount of any payments or expenses made and incurred by the Council under the provisions of this section after deducting any moneys received by them under the provisions of this section shall not in any one year exceed a sum equivalent to that which would be produced by a rate of twopence in the pound levied on property in the district assessable in that year to the general district rate.

Provision
and use of
booths tents
&c.

49. Subject to the provisions of this Act :—

- (1) The Council may upon the foreshore belonging or let on lease to them erect provide furnish equip and repair and may let to or may permit any person subject to such charges and upon such terms and conditions as the Council think fit to occupy any site and thereon to use or carry on booths tents bathing huts shops stalls or stands for the sale of refresh-

ments or of articles or commodities of any kind or for the giving of entertainments exhibitions and amusements and for any other purpose tending to promote the recreation health or pleasure of the public : A.D. 1926.

- (2) The Council may let for such periods and upon such terms and conditions as they think fit any booths tents bathing huts shops stalls or stands erected or provided by them under this section :
- (3) The Council may upon such terms and conditions as they think fit permit any person by whom any booths tents bathing huts shops stalls or stands are used or carried on under this section to make charges for the use of the same or for admission to entertainments exhibitions and amusements therein :
- (4) The Council may provide and let for hire bathing tents huts and vans and towels costumes and other apparatus for bathing purposes and may provide construct and maintain upon the pleasure grounds and seashore sheds and other conveniences for the storing of the same :
- (5) The Council may employ and pay boatmen for the purpose of protecting persons while bathing and may provide any boats for that purpose.

50. The Council may subject to the provisions of this Act place or authorise any person or persons to place shelters with or without lavatories and sanitary conveniences seats or chairs for the use of the public in any street highway park recreation ground or pleasure ground or other public place and upon land adjoining streets highways and public places or on the foreshore belonging or let on lease to the Council and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of shelters seats and chairs and for preventing injury or damage thereto.

Shelters
seats or
chairs may
be provided.

51.—(1) The Council may appoint officers for securing the observance of this Part of this Act and of the provisions of all other Acts relating to parks and

Power to
appoint
officers.

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A.D. 1926. — pleasure grounds and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

As to receipts and payments under this Part of this Act.

52. Subject to the provisions of this Part of this Act any moneys received by the Council in consequence of the exercise of the powers of this Part of this Act may be carried to the credit of a separate account to be called "the entertainments undertaking" and all expenses incurred by the Council in the exercise of such powers shall be paid out of such receipts. Any surplus upon the entertainments undertaking in any year shall be carried to the credit of the district fund and any deficit in the said undertaking shall be paid out of the district fund.

PART V.

STREETS BUILDINGS SEWERS AND DRAINS.

As to urgent repairs of private streets.

53. Where in the opinion of the Council repairs are required in the case of any street not being a highway repairable by the inhabitants at large to obviate or remove danger to any passenger or vehicle in the street the Council may at their own expense execute such repairs as they deem necessary and the execution thereof shall not prejudice or affect the operation with regard to such street at any subsequent date of the Private Street Works Act 1892 or of section 19 (As to urgent repairs of private streets) of the Public Health Acts Amendment Act 1907. Provided that the cost of any such repairs shall not exceed five pounds in the case of any such street.

Adjustment of boundaries of streets.

54.—(1) The Council may enter into and carry into effect agreements with any owner of lands adjoining any street for the adjustment of the boundary of any such street and for such purpose may give up to such owner land including land forming part of the street in exchange

for other land For the purposes of this section the Council shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section. A.D. 1926.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the district and if during such period of one month any four inhabitant householders of the district by themselves or their agent give notice to the Council of their intention to appeal under the provisions of this section the Council shall not proceed with their proposals (unless the notice of appeal is withdrawn) pending a decision on or a withdrawal of the appeal The advertisement in the newspaper shall include notice of this proviso.

(3) Any four inhabitant householders of the district may appeal to a court of summary jurisdiction against any proposal of the Council for an adjustment of the boundaries of a street under this section within the period mentioned in subsection (2) of this section.

(4) On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(5) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(6) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it becomes necessary to alter any such telegraphic line the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration as though the Corporation or the owner of the adjoining land (as the case may be) were "undertakers" within the meaning of the said Act.

55.—(1) For the purpose of securing the proper Adjust-
laying out or development of any estate or lands in ment of

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boundaries
of estates.
respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Council for approval the Council may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Council and the respective persons interested in such estates or lands be determined on the application of the Council or any such person by an arbitrator to be appointed by the Minister of Health and the Council may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Council.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor Where any such covenants restrictions or conditions shall in any case be agreed to be

inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section. A.D. 1926.
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(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Council may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister of Health and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Council may think reasonable.

56. The power of the Council to make byelaws with respect to new streets under section 157 of the Public Health Act 1875 shall extend to enable them to require intersecting streets in connection with the laying out of new streets at such intervals as the byelaws may determine. For the purposes of this section "intersecting street" means a side or cross street forming a junction with another street. Byelaws as to intersecting streets.

57.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to any street or road he shall submit to the Council plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Council. As to erection of retaining walls.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Council requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Council be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

58.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for a number of persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Council a plan and section thereof and shall comply with such regulations as the Council may prescribe for securing the stability of such stand or Restriction on erection of temporary stands &c.

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A.D. 1926. structure and for securing the safety of persons to be
— accommodated thereon.

(2) Any person acting in contravention of this section or offending against any such regulation shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Direction
signs.

59.—(1) The Council may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the direction or the distance to towns railway stations public buildings and other places of a public character.

(2) Before putting up or painting a sign on a house building or place the Council shall give notice thereof to the owner of such house building or place and such owner if aggrieved by such notice may appeal to a court of summary jurisdiction within one month after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

Notice of the right to appeal shall be endorsed on every notice given by the Council under this section.

(3) Any person who shall wilfully and without the consent of the Council obliterate deface obscure remove or alter any such sign shall be liable to a penalty not exceeding forty shillings and the Council may recover the expenses of replacement and making good from such person.

No building
allowed
until street
defined.

60.—(1) Where plans and sections of a new street have been deposited with and approved by the Council no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for such person except with such consent to erect the building or any fence nearer to the centre of the street than such line.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

61. Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 in its application to the district shall be extended so as to empower the Council to make byelaws with respect to—

(i) the number of dwelling-houses which may be erected in one block or in one continuous row;

(ii) the provision of an open space for separating blocks or rows of dwelling-houses and the width of such space;

(iii) the situation construction and height of walls or fences upon or across such open space.

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 Byelaws as to erection of dwelling-houses under continuous roof.

62. The power given by subsection (4) of section 23 of the Public Health Acts Amendment Act 1890 to make byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws and with respect to the submission in respect of the alteration of such plans and sections as can be required in relation to the erection of a new building.

Byelaws as to alterations to old buildings.

63.—(1) Every new building which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Council under the circumstances of the case and the owner shall not permit such building to be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

Means of escape from buildings in case of fire.

(2) The Council in the case of every existing building exceeding two storeys in height and used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be

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A.D. 1926. — provided for the use of persons employed in or about such shop or restaurant if in the Council's opinion such building is not provided with proper and sufficient means of escape from each storey the upper surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

(3) Where the means of escape in case of fire provided in connection with any such building as aforesaid shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Council make such alterations in the said means of escape as may be reasonably necessary and shall if so required by the Council provide further or other means of escape.

(4) (a) Any person aggrieved by any requirement of the Council under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within seven days after the receipt of the requirement provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

(b) Notice of the right to appeal shall be endorsed on every requirement of the Council under either of the said subsections.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Council under this section.

(6) If the owner alleges that the occupier of the building ought to bear or contribute to the expenses of complying with any requirement of the Council under this section he may apply to the county court and thereupon the county court after hearing the occupier may make such order as appears to the court just and equitable under all the circumstances of the case.

(7) The means of escape in case of fire provided in connection with any such building as aforesaid shall not be altered without the consent in writing of the Council and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction. A.D. 1926.

(8) This section shall not apply to premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or any enactment amending those sections apply.

(9) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(10) Where an existing building is newly converted after the passing of this Act into flats it shall be deemed to be a new building within the meaning of this section.

64.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Food storage accommodation to be provided.

(2) (a) Every dwelling-house the erection of which was commenced but has not been completed before the passing of this Act shall where reasonably practicable be provided with a sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Council requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any owner aggrieved by any requirement of the Council under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

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(c) Notice of the right to appeal shall be endorsed on every requirement of the Council under this subsection.

(3) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Council under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

Sink &c. to
be provided.

65.—(1) Every dwelling-house erected after the passing of this Act shall be provided with a sufficient sink and with sufficient accommodation for washing clothing and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(2) (a) Every dwelling-house the erection of which was commenced but has not been completed before the passing of this Act shall where reasonably practicable be provided with a sufficient sink and with sufficient accommodation for washing clothing and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Council requiring the same to be done shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(b) Any owner aggrieved by any requirement of the Council under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Council under this subsection.

(d) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Council under this section he may apply to the county court and thereupon the county court after giving the occupier an

opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case. A.D. 1926.
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66. Section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the Public Health Acts Amendment Act 1890 in its application to the district shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section. Area of habitable rooms.

67. In exercising any powers of entry upon and inspection of any building or works in course of construction the surveyor and his assistants shall have from the builder or contractor for such building or works free of expense all reasonable use and assistance of ladders scaffolding and plant in and about such building or works Any person who shall refuse such use and assistance as aforesaid or shall obstruct the surveyor or his assistants in the use of such ladders scaffolding and plant as aforesaid shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. Powers on inspection.

68.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Council may order the owner at his option either to take down or to repair such building (in this section referred to as a "neglected structure") or any part thereof or otherwise to put the same or any part thereof into a state of repair and good condition to the satisfaction of the Council within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing. Dilapidated and neglected buildings.

(2) If the order is not obeyed the Council may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the order directs the taking down of a neglected structure or any part thereof the Council in executing the order may remove the materials to a convenient place and (unless the expenses of the Council under this section in relation to such structure are paid

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A.D. 1926. — to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Council under this section in relation to a neglected structure may be deducted by the Council out of the proceeds of the sale and the surplus (if any) shall be paid by the Council on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Council or if the proceeds of the sale are insufficient to defray the said expenses the Council may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

As to defective drains &c.

69.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil-pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Council may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Council was reasonable and whether the expenses incurred by the Council in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

Amendment of section 62 of Public Health Act 1875.

70. Section 62 (Local authority may require houses to be supplied with water in certain cases) of the Public Health Act 1875 shall be read and have effect as if the words "or the medical officer" were inserted therein after the words "the surveyor."

Improper construction

71.—(1) If a water-closet drain or soil-pipe is so constructed or repaired as to be a nuisance or injurious

or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the exercise of reasonable care be liable to a penalty not exceeding twenty pounds.

A.D. 1926.

—
or repair of
water-closet
or drain.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he has used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

72. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Council and if the owner or owners thereof shall fail to repair the same to the satisfaction of the Council within fourteen days after notice shall have been served on him or them requiring the drain to be repaired it shall be lawful for the Council if in their opinion such drain can be sufficiently repaired at a cost not exceeding thirty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine :

As to repair
of drains.

Provided that where such expenses do not exceed twenty shillings the Council may remit the payment of the same by the owner or owners if they think fit.

73. If any person cause any drain water-closet earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds :

Wilful
damage to
drains
water-
closets &c.

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises

A.D. 1926. — aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Saving for
 railway
 companies.

74. Nothing in this Part of this Act except the sections whereof the marginal notes are—

- “Restriction on erection of temporary stands &c.”;
- “Means of escape from buildings in case of fire”;
- “Dilapidated and neglected buildings”;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or land is used or held by the said railway company primarily for railway purposes.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Definitions
 for pur-
 poses of
 this Part of
 Act.

75. For the purposes of the sections of this Act of which the marginal notes are “Parents to notify infectious disease” “Power to close Sunday schools and exclude children from entertainments” and “Restriction on attendance of children at Sunday schools” and places of assembly when infectious disease prevails” respectively the expression “infectious disease” includes in addition to the diseases referred to in the section of this Act of which the marginal note is “Interpretation” measles German measles whooping cough chicken-pox scabies ringworm and influenza.

Information
 to be fur-
 nished as to
 infectious
 disease.

76.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer or the deputy or assistant medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer or the deputy or assistant medical officer may reasonably require for

the purpose of enabling measures to be taken to prevent the spread of the disease. A.D. 1926.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) For the purposes of this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889 and the expression "infectious disease" shall include pulmonary tuberculosis.

77.—(1) Any person being a parent or having the care or charge of a child attending at a school in the district who is aware of or has reason to suspect the occurrence of any infectious disease in any person residing with such parent or other person and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings. Parents to notify infectious disease.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) For the purposes of this section the expression "school" shall include a Sunday school.

78.—(1) If the Council or a committee of the Council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the district require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with. Power to close Sunday schools and exclude children from entertainments.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement

A.D. 1926. shall for every such failure be liable to a penalty not exceeding five pounds.

Restriction
on attend-
ance of
children at
Sunday
schools and
places of
assembly
when infec-
tious disease
prevails.

79.—(1) No person of or exceeding the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Council or of a committee of the Council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the district without having procured from the medical officer or school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

As to filthy
premises.

80.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Council that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Council duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Council or a committee of the Council are satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary orders) of the Summary Jurisdiction Act 1879.

(2) Any expenses incurred by the Council under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

Removal of
body of per.

81. When any person suffering from infectious disease shall die of such disease the medical officer may

give notice thereof to the person responsible for the conduct of the burial of the body of such person and in such case it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

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son who has died of infectious disease.

82. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household or knowingly carries on any trade or business connected with food in such a manner as to be likely to spread the infectious disease he shall be liable to a fine not exceeding forty shillings.

Prohibition on infected person carrying on business.

83.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation) would tend to prevent or check tuberculosis the clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Council unless the owner or occupier of such building informs the Council within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within a time to be fixed in the notice.

Disinfection in case of tuberculosis.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Council as aforesaid or if having so informed the Council as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by

A.D. 1926. — the officers and at the cost of the Council under the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Council under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Council may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Council in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Council in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Council for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Council and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the exercise by the Council of any of the powers of subsections (1) and (2) of this section in relation to any matter as to which he is not himself in default compensation shall be made to such person by the Council and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

Regulation
dustbins.

84.—(1) The Council may by notice in writing require the owner or occupier of any dwelling-house

warehouse or shop to provide portable covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Council. A.D. 1926.

(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Council.

(5) The owner or occupier of all premises in connection with which a dustbin has been provided as required by this section shall if so required by the Council pay to the Council on each first day of April after such provision such sum not exceeding five shillings as the Council may from time to time by resolution determine for or towards the maintenance repair and renewal by them of such dustbin. Such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin.

(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

85. The Council may make byelaws for securing Byelaws as the proper ventilation and lighting of and for the to stables.

A.D. 1926. — prevention of insanitary conditions (a) in or about or arising out of any existing stable (whether the same is used as such at the passing of this Act or not) or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

As to infected
stables and
other places.

86.—(1) Where the Council's veterinary surgeon has certified that any infectious or parasitic disease has appeared in any stable cowshed or other place within the district where animals are kept and the medical officer has thereupon certified that such stable cowshed or place cannot be efficiently disinfected a court of summary jurisdiction on complaint by the Council may make an order requiring the owner to demolish such stable cowshed or place or such part or parts thereof as they may think fit and to destroy the materials thereof in such manner as the order may prescribe.

(2) If the order is not obeyed within the time thereby prescribed the Council at any time after the expiration of such time may themselves execute the order and all expenses incurred by them under this section may be recovered by them from the owner but without prejudice to his right to recover the same from any lessee or other person occupying the stable cowshed or place.

Discontinu-
ance of
offensive
trade.

87.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act and in the opinion of the Council it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Council under the hand of the clerk to cease to use such premises for the carrying on of such offensive trade. Provided that the formation or expression by the Council of an opinion under this subsection shall be deemed to be a determination of the Council within the meaning of the section of this Act of which the marginal note is "As to appeals" and that the provisions of that section shall accordingly apply with respect

to such opinion as well as to any requirement by the Council under this subsection. A.D. 1926.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Council require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person such compensation for any loss sustained by him in consequence of the action of the Council as may be agreed upon between the Council and such person or as failing agreement shall be determined by arbitration under the provisions of the Arbitration Act 1889. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Council shall have been given for a period only unless the Council shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Council with reference to offensive trades.

88. The power of the Council to make byelaws under section 26 of the Public Health Acts Amendment Act 1890 shall extend to refuse which is not faecal or offensive or noxious matter or liquid. Byelaws as to refuse.

89.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly. Names of laundrymen to be furnished.

(2) Any person who offends against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

A.D. 1926.

For regu-
lating
manufac-
ture and
sale of ice-
cream &c.

90.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the district omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Council in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Council shall compensate the owner of the ice-cream or similar commodity or materials so destroyed. Provided that no compensation shall be payable in respect of any ice-cream or similar commodity or materials for the manufacture of the same manufactured or brought upon the said premises after such seizure and while any such person is suffering from infectious disease.

(3) Every vendor of or dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand or from a pail container or similar receptacle used without a cart barrow or other vehicle shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand pail container or receptacle and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) The medical officer and the sanitary inspector and any other officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of inspection of the materials or commodities or articles of food in the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity and of any cart barrow or other vehicle or stand pail container or receptacle in from or on which the same are offered for sale as an officer of the Council would have under section 72 (Precautions against contamination of food intended for sale) of the Public Health Act 1925 in the cases

therein mentioned and any person refusing inspection of the materials or commodities or articles of food in any such premises or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding five pounds. A.D. 1926.
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91.—(1) The Council may make byelaws for promoting and securing sanitary and cleanly conditions in the transport of food. Byelaws as to transport of food.

(2) At least one month before applying to the Minister of Health for confirmation of any byelaws made under this section applicable to the transport by a railway company of food the Council shall give notice to the company of their intention to make such application and such notice shall be accompanied by a copy of the proposed byelaws and such company shall be entitled to make representations to the Minister of Health with regard thereto.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Council in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of a byelaw made under this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

92.—(1) Any premises used or proposed to be used for the preparation or manufacture of potted or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Council from time to time and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid. Registration of premises used for preparation of potted and preserved foods.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop

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District Council Act, 1926.

A.D. 1926. — Act 1901 to be given or shall in any way affect the operation of that Act.

As to inspection of premises used for storage of food.

93.—(1) On any inspection carried out by the medical officer sanitary inspector or any other officer of the Council under the provisions of section 72 of the Public Health Act 1925 such officer shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis he shall forthwith notify to the vendor merchant or dealer or the agent of such person his intention to have the same analysed by the public analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such vendor merchant dealer or agent The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the public analyst.

(2) The expression “public analyst” in this section means the analyst appointed by the county council for the purposes of the Sale of Food and Drugs Acts 1875 to 1907.

Further powers in relation to unsound food.

94. Sections 116 to 118 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 shall extend to authorise the medical officer or sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections intended for sale or in the course of delivery after sale for the food of man and the provisions of such sections shall apply accordingly :

Provided that in the exercise at any railway station or upon any railway premises of the railway company of the powers conferred upon him by this section such medical officer or sanitary inspector shall conform to such reasonable requirements of the railway company owning or using such station or premises as are necessary to prevent the working of their traffic being obstructed or

interfered with and with respect to any cart or other vehicle belonging to the said company the powers conferred upon the medical officer or sanitary inspector by this section shall be so exercised as not unreasonably to obstruct or interfere with the collection of goods by the said company. A.D. 1926.

95.—(1) Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of this Part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section so far as they relate to advertisements in newspapers have been complied with and the production of a certificate purporting to be signed by an officer or servant of the Council that the notice required by this section has been affixed outside the Council offices and that handbills have been distributed amongst persons affected or likely to be affected so far as such persons could reasonably be ascertained shall be sufficient evidence that the other provisions of this section have been complied with.

PART VII.

POLICE AND HACKNEY CARRIAGES.

96. No person shall be entitled to drive a motor vehicle licensed by the Council as a hackney carriage (which expression shall in this section include an omnibus) unless he shall have satisfied the Council of his ability to drive and for that purpose the Council may impose such reasonable test as they may think fit. Power to impose test on motor drivers.

97. An occasional licence for a hackney carriage omnibus or other public vehicle to ply for hire may be granted by the Council to be in force for such day or days or other periods less than one year as may be specified in the licence. Power to grant occasional licences for hackney carriages and other public vehicles.

A.D. 1926.

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Inspection
and certifi-
cation of
taximeters.

98.—(1) The Council may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the district to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Council may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

(2) The Council shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

Power to
make regu-
lations as to
traffic on
carnival &c.
days.

99. The powers conferred by section 21 of the Town Police Clauses Act 1847 shall extend to enable the Council within the district on days appointed for carnivals or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours :

Provided that this section shall not apply to carriages running on the light railways of the Llandudno and Colwyn Bay Electric Railway Limited.

As to street
traffic.

100. The Council may delegate their powers under section 21 (Power to make orders for preventing obstructions in the streets during public processions &c.) of the Town Police Clauses Act 1847 and under the last preceding section of this Act to a committee consisting of not less than five members of the Council and any orders made or directions given by such committee under the said section shall have the same force and effect as if made or given by the Council.

101. The Council may make byelaws for prohibiting or regulating the distribution of handbills or the soliciting of alms on any street road promenade parade or public walk on the sea front or at any place in any street within 50 yards thereof or on the seashore. A.D. 1926.
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 Byelaws as to promenades &c.

102.—(1) No person shall in any street road promenade parade public walk garden or place of recreation on the sea front or at any place in any street within 50 yards thereof or on the seashore or beach (above or below high-water mark) within or adjoining the district importune any person by touting for a hotel lodging-house refreshment-house shop boat garden theatre light railway omnibus hackney carriage or any place of amusement nor without the consent in writing of the Council hawk sell or offer for sale any article or commodity Provided that in the case of the sale of newspapers and periodicals the said consent shall be given to such reasonable number of persons and upon such terms and conditions as the Council may think fit : Prohibition of touting and hawking on promenades &c.

Provided also that the Council shall reserve a space on the beach in which fishermen may sell on such days and during such hours as the Council may direct fish caught in boats belonging to or hired by such fishermen.

(2) Any person offending against the provisions of this section shall be liable for every such offence to a penalty not exceeding twenty shillings.

103. If any person shall erect provide or place or maintain on any street road promenade parade or public walk on the sea front or at any place in any street within 50 yards thereof or on the seashore any booth tent bathing hut shop stall stand or other erection or obstruction or shall use or carry on the same except in pursuance of the provisions of this or some other Act of Parliament or except with the consent in writing of the Council he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. Penalty for unauthorised erection of booths &c.

104. Every person who shall on Sundays in any street or public place in the district call or shout or ring any bell or use any noisy instrument for the purpose Penalty for crying newspapers.

A.D. 1926. of selling or advertising any newspaper journal or serial shall for every such offence be liable to a penalty not exceeding forty shillings.

Power of constables to enforce byelaws as to parks &c.

105. From and after the passing of this Act every police constable shall have the same power of enforcing byelaws made by the Council under the Public Health Act 1875 relating to any park or place of public resort or recreation ground under the control of the Council as is given to the servants of the Council by the byelaws for the time being in force under the provisions of the said Act.

PART VIII.

LANDS.

Power to take lands.

106.—(1) The Council in addition to the lands which they are authorised to purchase take on lease acquire and hold under section 24 (Power to take lands) and section 29 (Purchase of additional lands by agreement) of the Act of 1902 for the purposes of that Act may by agreement purchase take on lease acquire and hold for the said purposes such further lands as the Council may require and as the Minister of Health may sanction.

(2) The Council may purchase take on lease or acquire by agreement and may hold for the purposes of their omnibus undertaking any lands not exceeding five acres and they may on such lands erect or construct and hold omnibus carriage and motor houses sheds depôts yards offices buildings sidings and works and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses.

(3) Nothing in this Act shall exonerate the Council from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them for the purposes of the Act of 1902 or of their omnibus undertaking.

Further powers for acquisition of land.

107.—(1) The Council notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold

any lands which in their opinion it is desirable the Council should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

A.D. 1926.

(2) When any lands purchased or acquired or taken on lease by the Council under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Council and pending such appropriation all expenses incurred by the Council under this section shall be payable out of the district fund and general district rate.

108.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Council may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Acts 1890 to 1923) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Retention
and disposal
of lands.

(2) Provided that—

(a) the Council shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a

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consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained;

(b) nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Council in any case in which such consent would be required under any other Act if this Act had not been passed.

(3) Nothing in this section contained shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds of
sale of sur-
plus lands.

109.—(1) The Council may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or the Act of 1902 or under any other powers and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Any capital moneys received by the Council on the re-sale or exchange of or by leasing any lands acquired

under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister of Health. A.D. 1926.
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110. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

PART IX.

ELECTRICITY.

111. For the purposes of this Part of this Act the expression "the electricity limits" means the area within which the Council are authorised by any Act or Provisional or Special Order to supply electricity. Electricity limits.

112. The Council may in connection with and for the purposes of their electricity undertaking fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which electrical energy can be put and may appoint and pay persons for the purposes aforesaid. As to show-rooms and offices.

113. The Council may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not repairable by the inhabitants at large within the electricity limits supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1922 and of the Order of 1896 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend Power to lay electric mains in private streets.

A.D. 1926. and apply mutatis mutandis to and for the purposes thereof:

Provided that the Council shall not without the consent of the railway company lay down or place any electric mains wires and apparatus in any road or street for the time being belonging to or forming the approach to any station or depôt of the railway company.

Power to construct electrical sub-stations under streets.

114. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1922 and of the provisions of the Order of 1896 the Council may construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use within the electricity limits sub-stations transforming stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient:

Provided that the Council shall not construct any such sub-station transforming station or work (a) in or upon any bridge carrying a street over a railway of the railway company or the approaches thereto or under any bridge carrying such a railway over a street or within ten feet of any abutment of any such bridge or (b) in any street belonging to or repairable by the railway company and forming the approach to any station or depôt of such company or (c) so as to interfere with or render less convenient the access to or exit from any station or depôt of the railway company constructed and maintained under statutory authority except with the consent in writing of the railway company.

Use for lighting purposes of electricity supplied for power.

115.—(1) No consumer to whom electricity is supplied by the Council for power purposes shall without the consent in writing of the Council use such electricity for lighting purposes or suffer it to be so used.

Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Council through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for power purposes shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Council at such higher rate as for the time being they

may be charging for the supply of electricity for lighting purposes for all or any portion of the electricity which has been supplied to him for power purposes within one year previous to the date when the Council shall sue for any penalty as aforesaid. A.D. 1926.

Any court having jurisdiction to impose such penalty may and shall on the application of the Council decide upon what portion (if any) of such electricity the higher charge as aforesaid shall be payable to the Council.

(2) The provisions of section 18 (Power to refuse to supply electrical energy in certain cases) of the Electric Lighting Act 1909 shall apply to any person whom the Council have reasonable grounds for believing to be acting contrary to the provisions of this section.

116.—(1) If any consumer of electricity supplied by the Council under the terms of any agreement uses the electricity supplied to him by the Council in any manner contrary to the terms of such agreement the Council may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement. Provided that before discontinuing any such supply the Council shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement. Provisions as to supply of electricity by agreement.

(2) A consumer supplied with electricity by the Council under the terms of any agreement shall be deemed to be a person to whom the Council may be and are required to supply energy within the meaning of section 23 of the Order of 1896 and the provisions of that section shall apply to the supply afforded by the Council under such agreement unless the provisions of that section are expressly excluded from application in any such agreement and if the Council fail to supply energy to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Council :

Provided that the provisions of this subsection shall not operate to deprive any consumer of electricity

A.D. 1926. — supplied by the Council under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

As to maximum power which may be demanded.

117.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Council shall not include any supply of energy taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Council such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Council in order to meet the possible maximum demand for those premises the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 (Arbitration) of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Council under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Power to supply electricity fittings &c.

118.—(1) The Council may if they think fit purchase provide sell let for hire and fix set up alter repair and remove and otherwise deal in (but not manufacture) lamps electric lines electric motors fittings apparatus and things for generating transforming distributing and utilising electricity (in this section referred to as "electric fittings") and may provide all materials and do all work necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such fittings and for securing (both as regards the consumer and third parties) their safety and return to the Council as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) Any electric fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any

proceedings in bankruptcy against the persons in whose possession the same may be. A.D. 1926.

(3) All electric fittings let for hire under the provisions of this section shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Council :

Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) The Council shall only be entitled to the privileges and exemptions conferred by subsections (2) and (3) of this section in respect of such of the said fittings (other than meters) as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

(5) Provided as follows :—

(a) The Council shall so adjust the charges to be made by them for any electric fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed);

(b) Every sum charged by the Council in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer;

(c) The total sums expended and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Council for that year.

(6) If the Council commence proceedings for the summary recovery of a sum due for a supply of electricity

A.D. 1926. — any other sum due or payable to the Council in respect of the sale or hire of any such fittings or the provision of materials and work in connection therewith as are referred to in this section or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily provided the amount due or payable under this section does not exceed twenty pounds.

Byelaws as to apparatus and fittings. **119.** The Council may make byelaws for the purpose of preventing fire in any building or premises supplied with electricity by the Council with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 (Regulations to be inserted in licences &c.) of the Electric Lighting Act 1882 shall apply to any byelaws made under this section :

Provided that nothing contained in any byelaws to be made under this section shall apply to or in respect of any building or premises (other than a dwelling-house) belonging to the railway company and used by such company primarily for railway purposes.

Period of error in defective meters. **120.**—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Council.

Entry upon premises
Penalty for obstruction. **121.**—(1) Any person who shall hinder an officer appointed by the Council from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings &c.) of the Electric Lighting Act 1882

or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings. A.D. 1926. —

(2) Where any premises which the Council are entitled to enter in pursuance of the said section 24 are unoccupied the Council may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to the Council and cannot be ascertained after diligent inquiry after affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

122. Any expenses reasonably incurred by the Council in re-connecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Council in like manner as expenses lawfully incurred by them in such cutting off or disconnecting. Power to recover charge for reconnection.

123. The Council may levy and recover such charges as they think fit for taking the reading of any electricity meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than those of the periodical readings Provided that such charges shall not exceed the sum of one shilling for each reading. Charges for special readings of electricity meters.

124. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electricity from any person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Council shall allow such discount) be endorsed on every demand note in respect of such charges Provided that the Council shall make the same allowance to all consumers under similar conditions. Discounts for prompt payments.

PART X.

CONSOLIDATION OF PARISHES.

125.—(1) As from the thirty-first day of March nineteen hundred and twenty-seven (in this Part of this Act referred to as "the commencement of this Part of this Act") the parish of Llandrillo-yn-Rhos shall be Consolidation of parishes.

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A.D. 1926. extended so as to include the parishes of Eirias and Llysfaen and the parish of Llandrillo-yn-Rhos as so extended shall continue to be called "the parish of Llandrillo-yn-Rhos" Provided that this Part of this Act shall operate at an earlier date so far as is herein expressly provided.

(2) Subject to the provisions of section 60 of the Local Government Act 1894 the parish shall be divided into seven wards five of which shall be co-terminous in area with the five existing wards into which the existing parish of Llandrillo-yn-Rhos is divided and shall be called respectively by the names of the wards with which they shall respectively be co-terminous the sixth of which wards (to be called the Eirias Ward) shall be co-terminous in area with the existing parish of Eirias and the seventh of which wards (to be called the Llysfaen Ward) shall be co-terminous in area with the existing parish of Llysfaen Each of the wards which will be in the area which corresponds with the existing parish of Llandrillo-yn-Rhos shall be entitled to elect two guardians the Eirias Ward shall be entitled to elect two guardians and the Llysfaen Ward shall be entitled to elect two guardians.

(3) The persons who represent as guardians the said existing seven wards immediately before the commencement of this Part of this Act shall continue to hold office as guardians for the corresponding seven wards of the parish until the date on which they would have retired from office but for the operation of this Act.

(4) Subject to the provisions of this Act and of the enactments applied thereby as to adjustments all property (other than such as may be held for charitable or ecclesiastical purposes) debts and liabilities of the existing parishes of Llandrillo-yn-Rhos Eirias and Llysfaen including all property held under any trust for any of such parishes (in this Act referred to collectively as "the existing parishes") or the inhabitants or parishioners thereof shall become the property debts and liabilities of the parish and in case of property held in trust as aforesaid shall be held in trust for the parish or for the inhabitants or parishioners thereof for the same purpose as heretofore.

(5) All arrears of rates made by the overseers of the poor for the existing parishes respectively which at the

commencement of this Part of this Act are due or owing in respect of hereditaments in those parishes shall be collected and recovered by the Council as the rating authority and when collected and recovered shall be applied (so far as may be necessary) towards the discharge of any precept or order in respect of expenses incurred prior to that date and which are in force at that date and are not satisfied and (subject to the foregoing) all balances and any other moneys in the hands of the overseers of the existing parishes on the same date shall be handed over by them to the Council as the rating authority.

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(6) All rate books books of account minutes of proceedings deeds papers and writings belonging to the existing parishes shall be deposited at the clerk's office in the district or at some office or place appointed by the Council and be there kept and preserved by the clerk or some officer to be appointed by the Council and the ratepayers shall at all times have the same right of inspecting and making extracts from such books and minutes as they would have had if they had continued to be ratepayers of the existing parishes.

(7) All valuation lists in relation to hereditaments and premises in the existing parishes and in force at the commencement of this Part of this Act shall until new valuation lists are made be and be deemed to be part of the valuation list for the parish.

126. On the commencement of this Part of this Act all and every right custom privilege or power other than in matters ecclesiastical and in relation to ecclesiastical charities within the meaning of the Local Government Act 1894 vested in or exerciseable by the parishioners ratepayers or inhabitants in vestry assembled of the existing parishes shall cease to be so vested or exerciseable and every such right custom privilege or power shall for and within the parish be vested in and exerciseable by the Council.

Transfer to
Council of
powers of
vestry.

127.—(1) Every assistant overseer poor rate collector vestry clerk and other officer employed in the performance of the duties of overseers and directly remunerated by them or by the guardians of the poor of the Conway Union who by virtue of this Part of this Act or of anything done in pursuance or in consequence

Compensa-
tion to
existing
officers.

A.D. 1926. — thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment or by diminution or loss of fees salary or emoluments and for whose compensation for that loss provision is not made by any other enactment for the time being in force shall be entitled to compensation from the Council for that loss.

(2) The provisions contained in the Sixth Schedule to the Act of 1925 shall apply to the determination and payment of compensation under this section to officers and for the purpose of those provisions the Council shall be the compensating authority.

Ecclesiastical divisions and charities.

128. Nothing in this Act shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

As to land tax and income tax.

129. Nothing in this Act shall affect land tax and for the purposes of income tax the provisions of the section of this Act whereof the marginal note is "Consolidation of parishes" shall not come into operation during any year in which under any enactment the annual value of any property adopted for the purpose of income tax under Schedules A and B for the preceding year is taken as the annual value of that property for the same purpose for that year.

Settlement and removal of poor.

130. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Act the following provisions shall have effect (that is to say):—

Every person who at the commencement of this Part of this Act has acquired or is in the course of acquiring a settlement in any of the existing parishes by reason of any residence completed or in course of completion or of any act or thing done or in course of being done or of any status condition right or privilege acquired or created or in course of acquirement or creation in any of the existing parishes shall be deemed to have acquired or to be in course of acquiring a settlement in the parish.

131. Subject to any future revision the basis or standard of the county rate for the county shall be altered—

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County rate basis.

(a) by the omission therefrom of the amount appearing therein as the total annual value of the property in the existing parishes;

(b) by the insertion therein as the total annual value of the property in the parish of the amount appearing therein as the total annual value of the property in the existing parishes.

132. For the purposes of the jury lists the parishes affected by this Act shall be deemed to continue unaltered until the new lists come into operation.

Saving for existing lists of Parliamentary voters &c.

133. Notwithstanding the alterations effected in the existing parishes by this Act and subject to the foregoing provisions of this Act all contribution orders made by the guardians of the poor of the Conway Union before the commencement of this Part of this Act shall be as valid in law as if this Act had not been passed.

Saving for contribution orders and precepts.

134. Nothing in this Act shall be deemed to restrict any power conferred upon the Minister of Health by any Act of Parliament relating to the relief of the poor and passed before the commencement of this Part of this Act.

Saving for Minister of Health.

135. Nothing in this Part of this Act shall affect the provisions of the Act of 1925.

Saving for 15 & 16 Geo. 5. c. 90.

PART XI.

RATING.

136. This Part of this Act shall come into operation as from the thirty-first day of March nineteen hundred and twenty-seven.

Commencement of Part XI. of Act.

137.—(1) Instead of making assessing and levying a general district rate and a poor rate the Council shall make and levy throughout the district a consolidated rate which shall be called "the general rate."

Power to levy a general rate.

(2) Subject to the provisions of this Act every general rate shall be made levied and collected and shall be recoverable in the same manner in which at the commencement of this Act the poor rate may be made

A.D. 1926. — levied collected and recovered and all the enactments relating to the poor rate which are in force at the commencement of this Act shall apply to the general rate.

Differential
rating for
certain
classes of
heredita-
ments.

138. The provisions contained in this section shall have effect with respect to the general rate (that is to say) :—

(1) In respect of any period before the date of the first new valuation the owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as woodlands and the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament or order made under the Light Railways Act 1896 for public conveyance shall be assessed to the general rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of sixty-one per centum only of the amount in the pound of the rate payable in respect of hereditaments not entitled to relief from rating :

(2) Notwithstanding anything in subsection (8) of section 2 or subsection (2) of section 69 of the Act of 1925 during the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall subject to the provisions of the Tithe Act 1925 have effect within the district as if the following provision were substituted for section 1 thereof (that is to say) :—

“ The owner of tithe rentcharge attached to a benefice shall be liable to pay only—

(a) In respect of any period before the date of the first new valuation sixty per centum of the amount payable under subsection (1) of the section of the Colwyn Bay Urban District Council Act 1926 whereof the marginal note is ‘ Differential rating for certain classes of hereditaments ’ in respect of any rate which is assessed

on him as owner of that tithe rentcharge; A.D. 1926.
and

(b) As from the date of the first new valuation three-fifths of the amount assessed upon him as owner of that tithe rentcharge in respect of any general rate (including any additional item thereof) made in accordance with the provisions of the Act of 1925;

and the remaining forty per centum thereof shall on demand being made by the collector of the rate on the inspector of taxes for the district or any district therein be paid by the Commissioners of Inland Revenue and deducted from the moneys payable to the local taxation account ”:

(3) The Council shall for the purpose of the estimate to be made by the Minister of Health under section 3 of the Agricultural Rates Act 1923 prepare and transmit to him before the thirty-first day of March nineteen hundred and twenty-seven such a return as they might have been required by him to prepare and transmit under paragraph 5 of Part III. of the Second Schedule to the Act of 1925 if this Act had not passed:

(4) Nothing in this section shall in any way affect—

(a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

(b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923; or

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(c) The amount of the contribution for any purposes to be made by the parish out of the poor rate; or

(d) Subject as hereinafter mentioned the operation of the Tithe Act 1925 :

Provided that for the purposes of subsection (3) of section 7 and subsection (2) of section 14 of that Act this Act shall be deemed to be a local Act modifying the Tithe Rentcharge (Rates) Act 1899 :

(5) (a) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Council ;

(b) On appeals under this subsection the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

Form of rate &c. to be prescribed by Minister of Health.

139. The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate shall be in such form as the Minister of Health may from time to time prescribe.

Rating of and collection of rates by owners.

140. The provisions of section 11 of the Act of 1925 shall (notwithstanding anything contained in subsection (10) thereof) come into operation in the district on the first day of April nineteen hundred and twenty-seven and shall have effect in substitution for the provisions contained in sections 3 and 4 of the Poor Rate Assessment and Collection Act 1869 and section 211 (1) (a) of the Public Health Act 1875 and as from the said date all resolutions agreements and notices

then in force under any such provisions as aforesaid shall cease to have effect. A.D. 1926.

141.—(1) Any water rent rate or charge payable to the Council may be collected together with the general rate and the same books may be used for the said rent rate and charge and the general rate. Water rents may be collected with general rate.

(2) The Council may from time to time if they think fit make an allowance by way of discount not exceeding five per centum on the amount due in respect of any water rent rate or charge or any instalment thereof from every person who pays the same within such time after demand of the rate or any instalment thereof as the case may be as the Council may prescribe.

(3) Provided that the same rate of discount shall be allowed in similar circumstances to every person from whom such water rent rate or charge or any instalment thereof shall be demanded.

(4) Notice of this enactment shall be endorsed on every demand note where a water rent rate or charge is collected with the general rate.

142. Any other rate for the time being leviable by the Council and any charge for gas or electricity payable to the Council may be included with the general rate (but distinguished therefrom) in any book or books of assessment and in one demand note. The demand note shall be in such form as the Minister of Health may approve. Inclusion of gas and electricity charges &c. with general rate.

143. The Council may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas charges not exceeding in any case five per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case twenty-five per centum. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment if exercised shall be endorsed on every demand note for gas charges. Discounts.

144. The purposes to which the district fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Council in the exercise or performance General district rate may include working balance.

A.D. 1926. — of the powers and duties the cost of which is charged on the district fund or from and after the date of the first new valuation the general rate fund of the district and the Council may (in estimating the amount sufficient for those purposes and in making a precept for the district fund) include such a sum as they may consider to be necessary for the provision of such working balance.

Act to be deemed a local Act passed before commencement of Rating and Valuation Act 1925.

145.—(1) This Act shall be deemed to be a local Act within the meaning of sections 2 22 and 66 of the Act of 1925 and an Act within the meaning of section 69 of the Act of 1925.

(2) For the purposes of paragraph (3) in column (1) of Part II. of the Second Schedule to the Act of 1925 this Act shall be deemed to be a local Act passed before the commencement of the Act of 1925 and for the purposes of paragraph (3b) in column (2) of the said Part the percentage of the net annual value which corresponds with the percentage of the relief from rating given by this Act shall be deemed to be thirty-nine per centum.

(3) Paragraph (b) of subsection (3) and subsection (7) of section 2 and sections 5 and 59 of the Act of 1925 shall be deemed to be incorporated with and to form part of this Part of this Act Provided that for the purposes of the incorporation of the said subsection (7) of section 2 the expression "valuation list" where used therein shall mean a valuation list made under the Act of 1925.

PART XII.

FINANCIAL.

Power to borrow.

146.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and in order to secure the repayment of the said sums and the payment of interest thereon the Council may mortgage or charge the revenues of the Council and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith or applied thereto shall

respectively be “the prescribed period”) mentioned in

A.D. 1926.

the third column of the said table (namely) :—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The purchase of land for and the construction of buildings for the purposes of the omnibuses of the Council.	£ 4,000	Forty years from the date or dates of borrowing.
(b) The provision of omnibuses	8,200	Eight years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Council may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of Part II. (Omnibuses) of this Act and with the consent of the Minister of Health such further money as may be necessary for any of the other purposes of this Act.

(b) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Council may mortgage or charge the revenues of the Council.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as “the prescribed period”) as may be prescribed by the Minister with whose consent it is borrowed.

(3) The provisions of this section prescribing the revenues funds or rates which may be mortgaged or charged shall not limit the powers conferred upon the Council by section 61 (Power to use one form of mortgage for all purposes) of the Act of 1902.

147. In calculating the amount which the Council may borrow under the provisions of the Public Health Acts any sums which the Council may borrow under or for the purposes of this Act shall not be reckoned and the power of the Council of borrowing and re-borrowing for the purposes of this Act shall not be in any way

Certain provisions of Public Health Acts not to apply.

[Ch. lxxx.] *Colwyn Bay Urban* [16 & 17 GEO. 5.]
District Council Act, 1926.

A.D. 1926. — restricted by any of the provisions or regulations of the Public Health Acts.

Provisions
of Public
Health Act
1875 as to
mortgages
to apply.

148. Subject to the provisions of section 61 (Power to use one form of mortgage for all purposes) of the Colwyn Bay and Colwyn Urban District Council Act 1902 the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

Incorporation of provisions of Acts of 1897 and 1902 and Order of 1925.

149. The following sections and articles of the Colwyn Bay and Colwyn Urban District Council Act 1897 the Act of 1902 and the Colwyn Bay and Colwyn Order 1925 are incorporated with this Act and shall extend and apply thereto as if those sections and articles with the necessary modifications were set out in this Act (namely):—

THE COLWYN BAY AND COLWYN URBAN DISTRICT
COUNCIL ACT 1897.

Section 50 (Protection of lender from inquiry);

Section 51 (Council not to regard trusts).

THE ACT OF 1902.

Section 59 (Expenses of execution of Act).

THE COLWYN BAY AND COLWYN ORDER 1925.

Article 2 (Mode of borrowing);

Article 4 (Mode of repayment);

Article 5 (Formation maintenance and application of sinking fund);

Article 6 (Increase reduction or discontinuance of payments to sinking fund);

Article 7 (Power to reborrow);

Article 8 (Application of borrowed moneys);

Article 9 (Power to use sinking fund instead of borrowing).

150.—(1) The Council may establish a reserve fund to provide against the depreciation of investments and securities held for the sinking funds of the Council and any fund so established before the passing of this Act shall be deemed to have been lawfully established.

A.D. 1926.

—
Reserve
fund to
meet depre-
ciation of
invest-
ments.

(2) The Council shall carry to such fund such annual or other payments as appear to them to be required for enabling the fund to satisfy the purposes for which it is established :

Provided that if it appears to the Minister of Health that any such payments are required for the purpose aforesaid it shall be the duty of the Council to make such payments.

(3) The Council may invest the moneys forming such reserve fund and the interest on the investments of such moneys in statutory securities.

(4) Particulars of any such reserve fund shall be furnished to the Minister of Health and shall form part of the return required to be made to him under the section of this Act of which the marginal note is " Return to Minister of Health with respect to repayment of debt " and the provisions of that section shall apply as if such reserve fund were a sinking fund within the meaning of that section.

151.—(1) The clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1926.
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(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Council shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment now in force in the district requiring a return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Consoli-
dated loans
fund.

152.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and twenty-seven the Council may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

- (a) all moneys borrowed by the Council whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Council whether from the sale of capital assets or otherwise except such as are applied by the Council with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Council to comply with the terms and conditions as to repayment attaching to their several borrowing powers or

otherwise provided for the repayment of debt; and A.D. 1926.

- (d) a sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock mortgages or other securities issued in exercise of the statutory borrowing powers of the Council and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Council as aforesaid before the date as from which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of stock or any other securities issued by the Council the purchase of stock for extinction or the repayment of any moneys borrowed by the Council;

- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council; and

- (c) in the payment of dividends and interest on stock mortgages or other securities issued in the exercise of any statutory borrowing power of the Council and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the interest arising from the investments thereof shall not except with the consent of the Minister of Health be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Council and the dividends and interest thereon shall be charged indifferently on all the revenues of the Council and shall

A.D. 1926. rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Council to the holders of stock or other securities of the Council shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Council except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

As to section 234 of Public Health Act 1875.

153. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Council may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Council under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Council under those Acts.

Interest on mortgages held jointly.

154. Where more persons than one are registered as joint holders of any mortgage of the Council any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Council by any other of them.

Receipt in case of persons not sui juris.

155. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Council.

Evidence of transfer or transmission of securities.

156. It shall not be obligatory on the Council to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

157.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall be not less than one thousand pounds in the whole.

A.D. 1926.

—
 Appoint-
 ment of
 receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

158. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations (if any) thereof required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Council (that is to say) :—

Investment
 of and pay-
 ments into
 sinking
 fund.

(1) The Council may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities :

(2) The accumulations of the said yearly sums shall be paid and provided out of the district fund and general district rate and any interest dividends and the proceeds arising from the investment of the said yearly sums and the accumulations thereof including any moneys standing to the credit of any sinking fund or loans fund as aforesaid at the passing of this Act shall be paid into and form part of the district fund.

159. Notwithstanding anything contained in any previous enactment the Council may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals contingent superannuation or insurance or other similar fund (in

Use of
 moneys
 forming
 part of sink-
 ing and
 other funds.

A.D. 1926. — this section referred to as “the lending fund”) subject to the following conditions :—

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable :

Provided that the Council shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :

- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to reborrowing of sums raised under the statutory borrowing power shall apply accordingly.

Power to
use sinking
funds or
reserve
funds tem-
porarily.

160.—(1) The Council may from time to time for the purpose of providing temporarily for any current expenses that may be incurred by them in the execution of any Act of Parliament or Provisional Order confirmed by or under any Act of Parliament utilise any sinking

funds or reserve funds which they may have in hand crediting the said sinking funds or reserve funds with such fair rate of interest not being less than three per centum per annum as they may resolve. The amount of any sinking or reserve funds which the Council may utilise for such purpose shall not aggregate at any time an amount equal to one-fourth of the aggregate amount of the before-mentioned expenses for the immediately preceding financial year. A.D. 1926.
—

(2) All sums borrowed by the Council under this section in respect of the current expenses of any financial year shall be repaid out of the revenue received by the Council in respect of such year.

(3) When the Council borrow money under this section—

(a) the clerk shall within forty-two days after the end of each financial year furnish to the Minister of Health a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Minister shall approve or require;

(b) the Minister of Health may make such investigation as may be necessary to satisfy himself that the requirements of this section have been complied with and if it appear to the Minister of Health by the said report or by such investigation that the Council have failed to comply with the requirements of this section that Minister may by order suspend the operation of the powers of this section for such period as he may think fit.

(4) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March nineteen hundred and twenty-seven unless they shall have been continued by Act of Parliament or by an order made by the Minister of Health which order that Minister is hereby empowered to make and in the event of his making any such order he is hereby empowered to make such modifications or amendments in the provisions of this section as may appear to him to be necessary.

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161. Notwithstanding anything contained in any previous enactment—

Application
of revenue
and pay-
ment of
expenses of
under-
takings.

(a) All money received by the Council on account of the revenue of any undertaking for the time being of the Council from which revenue is derived shall be carried to and shall form part of the district fund and all payments and expenses made and incurred in respect of those undertakings shall be paid out of that fund.

(b) Any moneys which the Council are required or authorised to pay or apply or may in the future be required or authorised to pay or apply under the following enactments (namely) :—

Section 52 (Application of revenue) and section 53 (As to deficiency in receipts) of the Colwyn Bay and Colwyn Urban District Gas Act 1901;

Section 52 (Application of revenue) of the Order of 1896;

Section 51 (Application of pier revenue) of the Colwyn Bay (Victoria) Pier Order 1923;

Paragraph (c) of this section;

shall for the purposes of paragraph (a) of this section be deemed to be payments and expenses made and incurred in respect of the undertaking to which the said enactments respectively relate.

(c) Any income arising from any renewals fund depreciation fund contingent fund reserve fund or insurance or other similar fund shall be from time to time paid into the district fund and any contributions due to any such fund as aforesaid shall be paid out of the district fund.

(d) The Council may (if they think fit) apply money received by them on account of the revenue of any of the undertakings referred to in paragraph (a) of this section in the provision of funds for working capital.

Accounts.

162.—(1) The Council shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the following undertakings (that is to say) the water undertaking the gas undertaking the pier undertaking the omnibus undertaking

the entertainments undertaking and the electricity undertaking (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

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- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Council for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund formed for the purposes of the undertaking under the provisions of the section of this Act of which the marginal note is "Reserve funds."

(2) The Council shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

163.—(1) The Council may (if they think fit) provide a reserve fund in respect of each of the following undertakings (namely):—

Reserve funds.

- (a) the water undertaking;
- (b) the gas undertaking;
- (c) the pier undertaking;
- (d) the omnibus undertaking;
- (e) the entertainments undertaking;
- (f) the electricity undertaking;

A.D. 1926. by setting aside and investing such an amount as they
— may from time to time think reasonable and investing
the same in statutory securities and accumulating the
same until the fund so formed amounts to the maximum
reserve fund for the time being prescribed by the Council
in respect of the undertaking not being more than one-
tenth of the aggregate capital expenditure on the under-
taking.

(2) Any reserve fund which has been formed for
the purposes of any of the said undertakings and which is
in existence at the passing of this Act shall be deemed to
have been formed under this section.

(3) Any reserve fund formed under this section shall
be applicable to answer any deficiency at any time
happening in the income of the Council from the under-
taking in respect of which it is formed or to meet any
extraordinary claim or demand at any time arising
against the Council in respect of that undertaking or
for payment of the cost of renewing improving or extend-
ing any part of the works forming part thereof or other-
wise for the benefit of that undertaking and so that if
that fund be at any time reduced it may thereafter be
again restored to the prescribed maximum and so from
time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund under the
foregoing provisions although such fund may not at
the time have reached or may have been reduced below
the prescribed maximum.

Power to
create acci-
dent fund.

164. The Council may if they think fit form a
fund to be called "the accident fund" to provide for
meeting claims upon them under the common law the
Employers' Liability Act 1880 the Workmen's Com-
pensation Act 1906 or any Act or Acts for the time
being amending or extending those Acts or otherwise
in respect of any accident whether to their officers
servants and workmen or third parties occurring in the
execution of any of their powers and such fund shall be
formed by annually appropriating thereto such sums
out of any of their revenues as they from time to time
deem expedient and such sum shall be invested at
compound interest in or upon any statutory security
but when the fund shall amount to the sum of twenty
thousand pounds the Council may if they think fit dis-
continue such yearly payments but so that if the fund

is at any time reduced the Council shall recommence and continue the yearly payments until the fund be restored to the sum of twenty thousand pounds. Provided that the Council may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the sum shall not then have reached or shall have been reduced below the said sum of twenty thousand pounds. A.D. 1926.
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165.—(1) The Council may pay out of the district fund— Subscrip-
tions to
local gov-
ernment
associations
and other
expenses.

(a) Reasonable subscriptions whether annually or otherwise to the funds of any association of local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Council not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

(b) The reasonable expenses of the Council in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the district.

(2) The Council may also subscribe to any charity philanthropic association or society or other associations institutions or societies rendering national or public service such sum or sums as they may from time to time think fit and may charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues.

(3) Provided that the total amount subscribed by the Council under the provisions of subsection (2) of this section shall not in any one year exceed the amount which would be produced by the levying of a general district rate of one half-penny in the pound.

166. The Council may close any transfer books or the registers of transfers of mortgages or other securities Closing of registers.

A.D. 1926. of the Council as the case may be on any day in the month next before that in which an instalment of interest on such mortgages or other securities is payable but so that the books be not at any time kept closed for more than one month.

PART XIII.

MISCELLANEOUS.

Power to
erect weigh-
bridges.

167.—(1) The Council may erect and maintain on any open space or public place on or adjoining any highway in the district such weigh-bridges or weighing-machines and offices in connection therewith as they may consider necessary or desirable for the use of the public.

(2) The Council may make such reasonable charges as they may determine for and in respect of the use of any such weigh-bridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weigh-bridges or weighing machines erected by the Council under the provisions of this section.

The Council shall not erect or allow the use of any such weigh-bridge weighing machine or offices so as to interfere with or render less convenient the access to or exit from any station or depôt of the railway company.

Power to
establish
information
bureau.

168. The Council may establish and maintain an information bureau for the purpose of supplying such information with regard to the district as may be desired by visitors or intending visitors to the district and others and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or for information supplied by means thereof.

As to pub-
lishing wea-
ther reports.

169. The Council may provide and maintain barometrical and other instruments for recording the state of the weather and may take all necessary steps for making and publishing weather reports and statistics.

In execut-
ing works in
default of

170. Whenever the Council or the surveyor under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work

or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

A.D. 1926.

owner or occupier no liability for damages to be incurred except in case of negligence.

171. If the occupier of any house or part of a house or premises shall prevent the owner thereof from carrying into effect any requirement of the Council under Parts V. or VI. of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Penalty on occupiers refusing execution of Act.

172. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of the provisions of Parts V. or VI. of this Act as if those purposes had been mentioned in the said section 102.

Power of entry.

173. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Council under

General provisions as to bye-laws.

A.D. 1926. — the powers of this Act other than byelaws made under Part II. (Omnibuses) thereof Provided that as respects byelaws made under the section of this Act of which the marginal note is "Byelaws as to promenades &c." the Secretary of State shall be substituted for the Minister of Health Provided also that no byelaws affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade has been given thereto.

Evidence of
appoint-
ments
authority
&c.

174. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentica-
tion and
service of
notices &c.

175.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

176. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

A.D. 1926.

A; to breach of conditions of consent of Council.

177. All consents given by the Council under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the district shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk or other duly authorised officer of the Council.

Consents of Council to be in writing.

178. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

179. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages and charges to be settled by court.

180. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

A.D. 1926.

As to
appeals.

181. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council under the provisions of Parts IV. V. VI. or VII. or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Council may in like manner appeal.

Several
sums in one
summons.

182. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the district any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Informa-
tions by
whom to be
laid.

183. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Recovery of
penalties
&c.

184. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Penalties to
be paid over
to clerk.

185. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the clerk and be by him carried to the credit of the district fund or to such other fund as the Council shall direct.

186. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. A.D. 1926.
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Compensation how to be determined.

187. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

188. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889. Application of Arbitration Act 1889.

189. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

190. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein. Application of section 265 of Public Health Act 1875.

A.D. 1926.

Judges not
disqualified.

Inquiries by
Minister of
Health.

191. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

192.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

(2) The Council shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

Inquiries by
Minister of
Transport.

193. In respect of the exercise of any powers or duties conferred or imposed on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Council the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Abatement
of work
abandoned
or decayed.

194.—(1) Where any work constructed by the Council under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Council at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its

former condition to such an extent and within such limits as the Board of Trade may think proper. A.D. 1926.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Council they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Council and the amount of such expense shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

195. The Council shall not under the powers of this Act construct on over or under the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Council and the amount of such costs and charges shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be constructed without consent of Board of Trade.

196. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

[Ch. lxxx.]

Colwyn Bay Urban [16 & 17 GEO. 5.]
District Council Act, 1926.

A.D. 1926.

Costs of Act.

197. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council in the first instance out of the district fund and general district rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

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